

File No.: EXP202213299

RESOLUTION No.: R/00531/2023

Considering the complaint filed on November 15, 2022, before this Agency by Mr. A.A.A. against INSENE SOLAR S.L.U. for not having duly attended to his right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the complainant), after receiving a phone call from the number 955 944 169 identified as INSENE SOLAR S.L.U. with NIF B90065483 (hereinafter, the respondent), exercised his right of access before said entity, receiving a response indicating that "(...) we have proceeded to delete and destroy your personal data from our database."

The complainant sent a new email to the respondent reiterating his right of access.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed before the AEPD, consisting of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The representative of the entity states, in summary, that they contacted the complainant to explain that the call was not made by them, but by another company that has the same administrator, and that this was the reason for the error, but the complainant did not accept the apologies.

They indicate that when the complainant requested access to his data, an automatic response was sent from Insene stating that his phone number would be unsubscribed to avoid bothering him.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on February 15, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have commenced by virtue of said admission agreement, will be six months.

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The aforementioned agreement granted the respondent entity a hearing process, so that within ten working days it could present any allegations it deemed appropriate. This entity indicated, in summary, that "(...) It is indeed an error; the complainant believes that it is INSENE SL that is calling him, but it is explained that it is ILIO. Responding very poorly, where the complainant sends an email to INSENE SL, to which he is replied that his data is being unsubscribed by the data controller believing that a complaint had been made that he truly does not know."

"(...) that a letter was sent in February explaining the situation again and where he was given the appropriate knowledge for his record and knowledge, without obtaining any response. Attached as DOC No. 1, an email sent on February 13, 2023, explaining that no calls are made."

In said email, the following is read:

"Good morning Juan Vicente, our company does not make calls; we only subcontract a call center that makes them for us. Would you be so kind as to provide us with your phone number so that we can forward it to the subcontracted company and have it blocked so that you do not receive calls?"

And then there is a request for data cancellation of a third person, B.B.B..

FOURTH: After examining the allegations presented by the respondent, they are forwarded to the

complainant, so that, within fifteen working days, he may formulate any allegations he considers appropriate, indicating that the allegations presented by the respondent do not respond to his request but to a third person.

“(…) That in the response provided to C.C.C. they indicate that the phone number ***TELEFONO.1 does not belong to Insene Solar S.L.U. If they review my original complaint, they will see that it is the same phone number that I had reported to them, and I confirm that the caller identifies as Insene Solar.

(…) That I continue to receive phone calls today that identify as Insene Solar, for example, from ***TELEFONO.2 or ***TELEFONO.3.”

FIFTH: The responsible party, granted a hearing, reiterates, in summary, what has already been stated, that it was an error on the part of the person making the call by confusing the company of which the same person is the administrator.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of

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natural persons regarding the processing of personal data and the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and to demonstrate that the necessary response had been provided to the complainant, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the

GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject.

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rights, which will be free of charge (without prejudice to the provisions of articles 12.5 and 15.3 of the GDPR), and is obliged to respond to the requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to fulfill such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of article 15 of the GDPR and article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

FIFTH: In the case analyzed here:

1st The claiming party, after receiving a call identifying themselves as Insene S.L., requested the right of access to the entity.

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2nd The entity responded that "(...) we have proceeded to the deletion and destruction of your personal data from our database."

3rd The claimant reiterated their request for access, and in the absence of a response, filed a complaint with this Agency.

4th Once the complaint was received and forwarded to the responding party, they indicated, regarding the phone call, that it was an error in identifying the company, since the administrator is both of the

responding entity and of Ilio, the company from whose phone number the calls were made to the claimant. They provided a copy of an email sent to the claimant explaining this circumstance. Upon analyzing the aforementioned email, it is observed that both its text and the attached request for data cancellation refer to a third party. Furthermore, it is noted that the email was sent from a different address than the one initially directed to the claimant.

5th Upon receiving this response, the claimant confuses the sender of the email (who is the administrator of the responding party) with the third party referred to in the email sent to them.

6th The responding party, in their latest submissions, without realizing the error, again provides the same email.

From the examination of the documentation provided, it has been established that the claimant requested access to their data from Insene, and that this right has not been addressed.

The fact that the responding party considers that there was an error in identifying the administrator of the company on behalf of which they called does not prevent them from addressing the right of access exercised by the claimant.

In the case analyzed here, with the documentation available in the procedure, as can be inferred from the allegations made and the documentation provided by the parties, it is verified that the right of access has not been addressed, and consequently, it is appropriate to uphold the complaint filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. and to urge INSENE SOLAR S.L.U. with NIF B90065483, to, within ten working days following the notification of this resolution, send to the claimant a certification in which the requested right of access is addressed or is denied with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to INSENE SOLAR S.L.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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